

RDII extraction methods and hands-on practice

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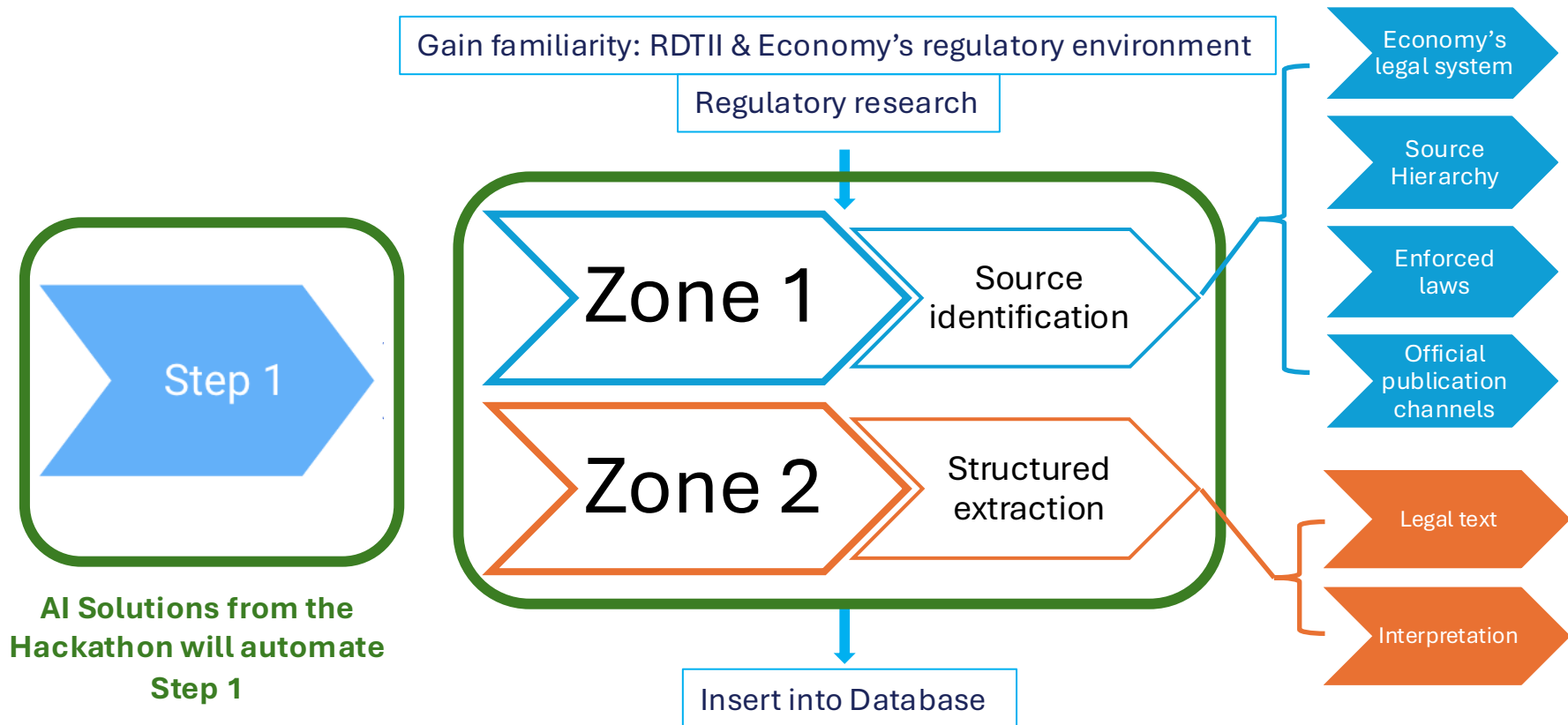
UNESCAP



•Agenda

- Current manual process for data collection
- Zone 1 Source identification
 - Economy's legal systems
 - Legal Hierarchy
 - Enforced laws
 - Official channels
- Zone 2 Text extraction & analysis
 - Legal text
 - Interpretation
 - Pillar 6 and 7
 - Common misinterpretation
- Hands-on practice

How: Current manual process for data collection



•What the database entry looks like

Pillar_ID		Indicator_ID	Raw Score	Act and/or practice	Coverage	Impact or comments on Acts or practices	Timeframe	References	Note
1				Impact Assessments;		("DPIA") guides has been implemented.	November 2017 last amended September 2021;		
55	7	7.4		Advisory Guidelines on The PDPA for Children's Personal Data in The Digital Environment	Horizontal	Organisations are also advised to conduct data protection impact assessments before releasing products or services that are likely to be accessed by children in order to meet their Accountability Obligation under the PDPA.	Since 28 March 2024	https://sso.agc.gov.sg/Act/PDPA2012	/media/files/PDPC/PDF-Files/Other-Guides/DPIA/Guide-to-Data-Protection-Impact-Assessments-14-Sep-2021.pdf
56	7	7.5		Criminal Procedure Code, 2010	Horizontal	Under the Criminal Procedure Code, (section 39 and 40) police officers have the power to access computers and the power to access decrypted information. Moreover, (section 20) empowers the police to order the "production of any document or other thing" for the purposes of criminal investigations. Any person who obstructs the lawful exercise by a police officer or an authorised person shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$10,000 or to imprisonment for a term not exceeding 3 years or to both.	Since January 2011 last amended in 2024	https://sso.agc.gov.sg/Act/CPC2010	https://tmt.bakermckenzie.com/-/media/minisites/tmt/files/2017_surveillance_law.pdf
57				Internal					https://www.gp-digital.org/world-map-of-encryption/

- Columns:
- **Column D — Raw score:** score the measure
- **Column E — Act and/or practice:** official title of the law, regulation, order, decision, guideline, or practice captured by the indicator.
- **Column F — Coverage:** horizontal or sectoral. Always specify the affected sector or data category where relevant.
- **Column G — Impacts/comments:** exact provision(s) plus a concise legal interpretation of why the measure is relevant to the indicator.
- **Column H — Timeframe:** in force, amended, repealed, transitional, or not yet effective.
- **Columns I-J — References:** official URLs and source trail.
- Column M: Note (Internal use)- Internal rule of thumb: never record only the law title; record the operative provision and your reasoning.

•Quick Poll 1:

- Question:

How would you start do the research on the question: ***“Does Singapore impose legally binding rules that ban or prohibit the cross-border transfer of data?”***

- Without AI tools, how would you begin?

- A. Copy and paste the full question into Google.
- B. Search for “Singapore cross-border data transfer law”.
- C. Search for likely source families, such as Singapore’s data protection law, telecom law, or sectoral regulations.
- D. Start from another point (please specify)

 pdpc.gov.sg
<https://www.pdpc.gov.sg> · guidance-by-topic

Guide to Cross-Border Data Transfers - Singapore - PDPC

佛历2569年4月14日 — This requirement **is** called the **Transfer** Limitation Obligation (TLO), and it ensures that personal **data** remains protected even after leaving ...

缺少字词: **ban** **prohibit**

 Singapore Statutes Online
<https://sso.agc.gov.sg> · PDPA2012-S63-2021

Personal Data Protection Regulations 2021 - Singapore ...

(1) For the purposes of section 26 of the Act, **a** transferring organisation must, before transferring an individual's personal **data** to **a** country or territory ...

 ResGuard Solutions
<https://resguard-solutions.com> · Home · Blog

Cross-Border Data Transfers from Singapore: PDPA ...

佛历2569年2月5日 — Section 26 of the PDPA restricts the **transfer** of personal **data** outside **Singapore** unless the organisation ensures that the receiving party ...

缺少字词: **impose** **ban** **prohibit**

 TDCX
<https://www.tdcx.com> · policies · bcr-sg

Binding Corporate Rules - TDCX Singapore

佛历2567年10月18日 — The **transfer** of personal **data** to **a** group company outside of **Singapore** **is** pursuant to our group company's **binding** corporate **rules** on personal **data** **transfer**.

缺少字词: **ban** | 必须包含: **ban**

 Global Law Experts
<https://globallawexperts.com> · pdpa-crossb...

PDPA cross-border data transfers fintech Singapore 2026

佛历2569年4月14日 — Under the PDPA's **Transfer** Limitation Obligation, as clarified in the PDPC's 14 April 2026 guidance, organisations must ensure that overseas ...

缺少字词: **ban** | 必须包含: **ban**

Choose
which?

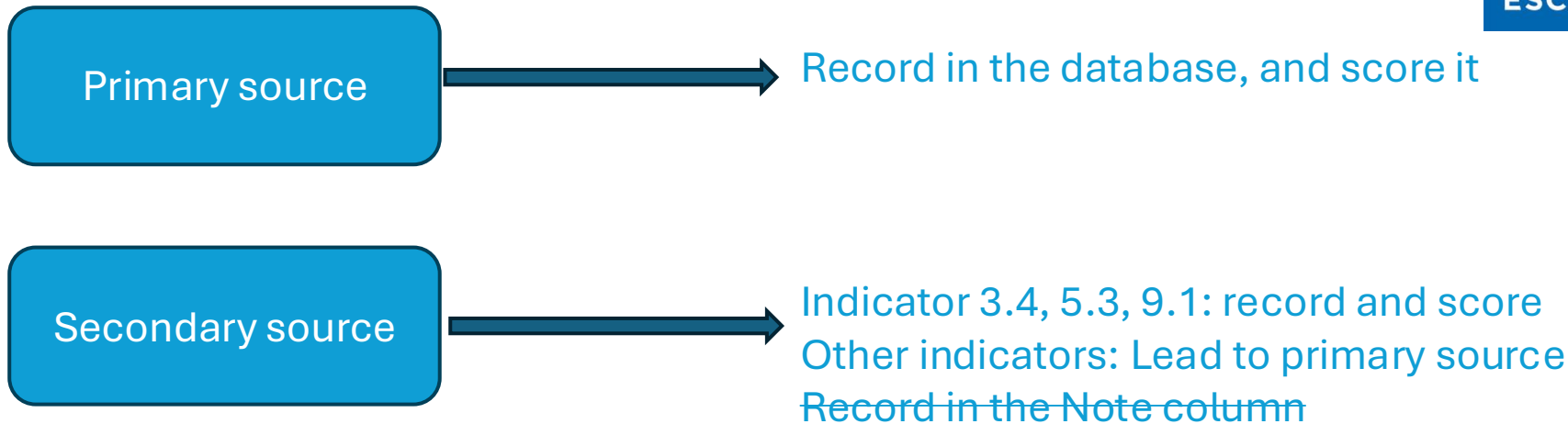
1. RDTII Policy Measure Coverage

- 1) Measures affecting **digital trade-related products and services**.
- 2) Non-preferential and **enforced measures** from **official sources**
- 3) **Horizontal** and vertical measures.
- 4) Scoring criteria.

•Zone 1 Source identification

- **Primary sources** vs **Secondary sources**
- **Primary sources** are official legal instruments that have legal effect in the domestic legal system.
- **Secondary sources** include news reports, academic publications, legal commentary, and other non-official materials.

Secondary sources are **leads**, not the legal basis; use them to find the primary source.



- The database entry should normally cite the official instrument itself, unless the methodology for that indicator expressly relies on another approved source.
- Never let a secondary source rewrite the legal meaning of the primary text.

17	https://dialog.am/storage/files/posts/posts_10142722021_TEL18_Chapter_4_Armenia.pdf	https://www.arlis.am/Annexes/4/elektr_com_en.pdf
	https://dialog.am/storage/files/posts/posts_10142722021_TEL18_Chapter_4_Armenia.pdf	https://www.arlis.am/Annexes/4/elektr_com_en.pdf

•Secondary sources

- **3.4 Investment screenings** — use **primary legal texts** for the screening mechanism, but **factual materials** may be used to document whether a screening mechanism was actually used to block or condition an investment.
- **5.3 Shares owned by the Government** — use **official telecom regulator reports, Government updates, annual reports, and official company websites** to establish actual ownership structures and market presence.
- **9.1 Blocking or filtering commercial web content** — use **primary laws and regulations** where available, but **factual practice materials** may also be needed to document actual blocking or filtering events in practice.

In these cases, researchers may also use the following sources to document **de facto practice**:

- official annual reports
- regulator market reports
- company websites
- actual cases
- technical monitoring reports
- reputable secondary materials
- media release
-

• Zone 1 Source identification-Primary Source

- Economy's legal system
- A researcher needs to know whether the economy is broadly operating in a:
 - **civil law system** → statutes dominate
 - **common law system** → case law or general legal principles may also matter
 - **mixed system** → combination / context-specific
- The legal system affects where authoritative rules are most likely to be found.
- Example lessons:
 - **Micronesia**: case law matters for company-related issues.
 - **China**: cases do not count as legal sources.

Constitutions (highest source of law
in many written-constitution
systems)

Primary legislation
(Acts/Statutes/Codes)

Delegated/Subsidiary legislation
(Rules/Decrees/Regulations)

Administrative/Regulatory/Local
instruments (Authority depends on
enabling law)

Case law/ Judicial interpretations
May also matter, especially in
common law systems or where
higher-court interpretations are
authoritative

E.g., Singapore (4.10) – the
doctrine of breach of confidence
is part of the domestic legal
framework on trade secrets

Constitution of the Republic of Fiji 2013

Cybercrime Act 2021

Map Management Regulations 《地图管理条例》

Personal Data Protection Code of Practice for Licensees
Under the Communications and Multimedia (Act 1998) of
2017

Cyber Security Byelaw 2077 (2020)

- Government notifications, Guidelines, Framework/National strategy

- **Government notifications**
 - depends on domestic authority and legal status
- **Guidelines / Codes of Practice**
 - binding if mandated by law
- **Frameworks / strategies**
 - mostly not binding, e.g., Fiji National E-commerce Strategy 2025–2029
 - may still be relevant as policy or governance documents

Notification No.0837 on the Requirement on Use of the National Domain Name “.com.kh” and the National Domain Name Electronic Address when Filing an Annual Declaration of the Commercial Enterprises (the “ADCE”) 2022-- The Ministry of Commerce (the “MOC”) and the Ministry of Post and Telecommunications (the “MPTC”) jointly issued a Notification on 1 April 2022 to inform all companies duly registered in the Kingdom of Cambodia

For example: Guidelines on Data Privacy and Data Protection 2021 Bhutan by Royal Monetary Authority of Bhutan

-- Preliminary

Pursuant to Section 210 of the Financial Services Act of Bhutan 2011 and Section 166 of the Royal Monetary Authority Act 2010 .

4 Obligations of FSPs

- 4.1 The FSPs shall be responsible and accountable for data privacy and data protection with respect to the personal data processed by them; and
- 4.2 Under the direction and supervision of the competent authority of the FSPs, the FSPs shall establish a Data Privacy Management Committee (DPMC) headed by a Data Protection Officer.

- **Hierarchy is not the same as coverage**
- **Horizontal** does not mean **higher rank**.
- **Sectoral** does not mean **lower rank**.
- Legal hierarchy depends on the **type and authority of the instrument**, not on whether the rule is broad or narrow.
- Coverage mostly affects **indicator scope and scoring**.
- For example:
 - Nauru Communications and Broadcasting Act No.21 2018, is a sectoral law, while Cybercrime Act 2015 is a horizontal law, but they weight the same legal hierarchy, as they are all Acts. And they score the same, as they are all minimal data retention requirement.

7	Nauru	7	7.3	1	Communications and Broadcasting Act No.21 2018	Telecommunication sector	Section 48(4) (Confidentiality of subscribers information) states that all information of a subscriber shall be retained by a service provider or network provider for billing purposes only and be retained for a period of 7 years .	S
8	Nauru	7	7.3	1	Cybercrime Act No.14 2015	Horizontal	Section 37 (Monitoring obligation) states that (1) Service providers have a general obligation to monitor and store the information which they transmit or store on behalf of another, as well as a general obligation to actively seek facts or circumstances indicating illegal activity to avoid criminal liability. (2) Any information stored under subsection (1) shall be kept for a period of up to 12 months before service providers can delete or destroy it. (3) Information monitored or stored is to be treated as private and confidential and shall only be accessible through an order by a Court in connection with an offence that has been committed.	S

• All sectoral law in indicator 7.1

• Bhutan Indicator 7.1

A	B	C	E	F	G
Economy	Pillar_ID	Indicator_ID	Raw Score	Act and/or practice	Coverage
Bhutan				Data Residency Policy for Payment Systems Data 2021	Payment service providers
Bhutan	7	7.1	0.5	National Digital Identity Act of Bhutan 2023	Digital Identity
Bhutan	7	7.1	0.5	Guidelines on Data Privacy and Data Protection 2021	Financial Service Providers
Bhutan	7	7.1	0.5	Guidelines for Licensing of OTT Services 2022	OTT service
Bhutan	7	7.1	0.5	Information, Communications and Media Act of Bhutan 2018	ICT and Media services
Bhutan	7	7.1	0.5	Trade and Industry Rules 2023	E-commerce

• Practical hierarchy questions to ask

- Which instrument actually imposes the operative rule: the Act itself, a decree, an implementing rule, a regulator decision, or a court judgment?
- Are they legally binding considering the economy legal system?
- Is it a secondary source? (not completely excluded)
 - Secondary sources. Example of 3.4, 5.3, 9.1

• Enforced laws

- **Enforced measure**

- Excludes pending draft and repealed measures
- Essential to Timeframe column Since [Month] [Year] -> Last amended [Month] [Year]
- Check the enforcement time and expire time
- Amendment: insert in main law, or a single file.

Personal Data Protection (Amendment) Bill (Act A1727) 2024

How to determine whether a law is in force?

Check formal adoption and publication

Was the rule adopted, signed, issued, and officially published? Drafts, consultation papers, and white papers are usually not in force.



Check the effective date

Look for wording in the law such as 'enters into force on...', or 'effective from...', publication does not always mean immediate legal effect



Check whether it is still current

Has it been repealed, amended, replaced, or superseded by a new rule? An old rule may no longer be in force

• Quiz 2: is it RDTII source or not?

- Indicator 6.1-Bans or prohibit data transfer

1. Thailand Personal Data Protection Act, B.E. 2562 (2019), full force since June 2022
 2. Directive 95/46/EC (Data Protection Directive), repealed by General Data Protection Regulation (GDPR) since May 2018
 3. India Drafted Digital Personal Data Protection Rules, 2025, published for public consultation on 3 January 2025
 4. Meta's updated Privacy Policy announcement
 5. Wikipedia page on the General Data Protection Regulation
 6. India Digital Personal Data Protection Act, 2023, act date: 11 August 2023
 7. Law firm article——“Thailand Personal Data Protection Law”
- Please type the items number to the following:
 - RDTII source:--
 - Not RDTII source:--

•Answer

• Indicator 6.1-Bans or prohibit data transfer

1. Thailand Personal Data Protection Act, B.E. 2562 (2019), full force since June 2022 
2. Directive 95/46/EC (Data Protection Directive), repealed by General Data Protection Regulation (GDPR) since May 2018 
3. India Drafted Digital Personal Data Protection Rules, 2025, published for public consultation on 3 January 2025 
4. Meta's updated Privacy Policy announcement 
5. Wikipedia page on the General Data Protection Regulation 
6. India Digital Personal Data Protection Act, 2023, act date: 11 August 2023 
7. Law firm article——“Thailand Personal Data Protection Law” 

• Quiz 3: is it RDTII source or not?

- Indicator 9.1 *Blocking or filtering commercial web content*

1. The government announcement of blocking certain commercial website.
 2. Rules and Regulations for Licensing and Operation of Internet Service Providers in Bhutan 2021, entered in force since November 2021
 3. Miscellaneous Offences Act CAP.30 No.S59/2021 Revised Edition 2023
 4. GreatFire.org report that as of February 2024, over 100,000 websites were blocked in certain country.
 5. The Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, in force since 2021
- Please type the items number to the following:
 - RDTII source:--
 - Not RDTII source:--

•Answer

• Indicator 9.1 *Blocking or filtering commercial web content*

1. The government announcement of blocking certain commercial website. 
2. Rules and Regulations for Licensing and Operation of Internet Service Providers in Bhutan 2021, entered in force since November 2021 
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4. GreatFire.org report that as of February 2024, over 100,000 websites were blocked in certain country. 
5. The Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, in force since 2021 

• Zone 1 Source identification

• Quiz 4: Can you match?

A. Failing to check the latest amendments or judicial interpretations

1. Legal systems

B. Overlooking the role of administrative guidance or party/ executive policy in some states

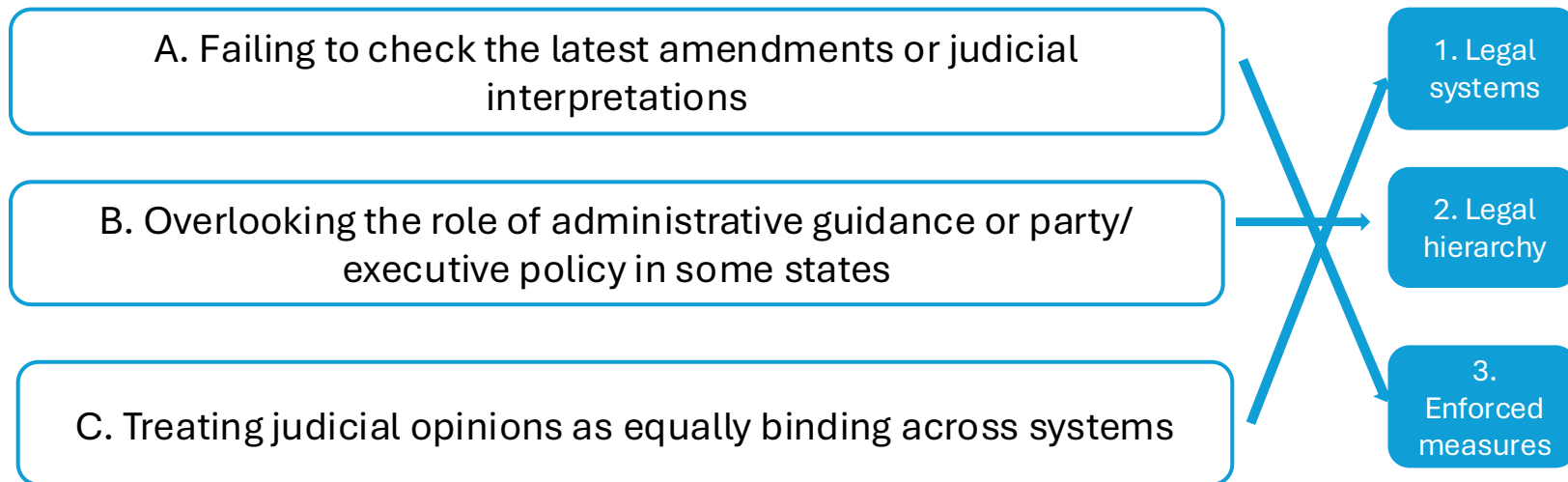
2. Legal hierarchy

C. Treating judicial opinions as equally binding across systems

3. Enforced measures

• Zone 1 Source identification

• Quiz 4: Can you match?



•Zone 2 Text extraction & analysis

- Good database language is neutral and legal -- RDTII expected legal extraction and interpretation: **Original legal text + interpretation (rationale)**
- Extract the operative clause, not just the title or summary.
- Always ask:
 - **who** is regulated,
 - **what** is required/prohibited,
 - **to what data/service/sector, under what conditions, and with what exceptions.**
- Do not ignore thresholds, exemptions, implementing rules, or regulator guidance where they define the practical scope of the obligation.

• Quiz 5: typical structure of the law

• What are the components of a law?

- Introduction/preamble: why this law?
- Definition: what do the key terms mean?
- Substantive obligations: what you should do?
- Institutional provision: who will implement the law?
- Enforcement/penalty: what are the punishments if you don't do what you should do?
- Judicial review: what are the appealing decisions made by the administrative agency?
- Appendices
- All of above

•Quiz: typical structure of the law

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 - Appendices
 - All of above 

•Read the legal text

- Legal title, objective.->think of relevance
- Document structure->not just raw text
 - Chapters/Parts/Divisions
 - Article/Section/Clause
 - Subsection/Paragraphs
 - Annex/Schedule
- Definitions might affect the provisions
- Sometimes negation, exceptions, and conditions matter more than keywords
 - Unless/ except that/ provided that/ subject to/ Notwithstanding/ only if /no later than /to the extent/ may/shall/must/will/ not liable unless...

• Pillar 6 and 7

- **Pillar 6 - cross-border data flows**
- *Can data move across **borders**, under what restrictions, and at what cost?*
- **Pillar 7 - domestic governance of personal data**
- *How is data governed **within the economy**, and what domestic obligations apply?*



• Pillar 6: Concept, objective, and scope

• Pillar 6 - cross-border data flows

- *Can data move across **borders**, under what restrictions, and at what cost?*
- P6-I1 (Indicator 6.1) Ban and local processing requirements;
- P6-I2 (Indicator 6.2) Local storage requirements;
- P6-I3 (Indicator 6.3) Infrastructure requirements;
- P6-I4 (Indicator 6.4) Conditional flow regimes; and
- ~~P6-I5 (Indicator 6.5) Not in agreement with binding commitments on data transfer.~~



• Indicator 6.1: Ban and local processing requirements

- This indicator captures:
 - a **ban on data transfer**, or
 - a **local processing requirement**
- These measures are highly restrictive because they prevent or strongly constrain cross-border data use.
- E.g., The Republic of Korea requires financial service providers that use cloud services to locally process credit and unique identification information of their users



• Indicator 6.2: Local storage requirements

- This indicator asks whether:
 - **a copy of data must be stored domestically**
- A local storage requirement does **not automatically prohibit transfer**.
Data may still move abroad if a local copy remains.
- E.g., Türkiye requires both domestic and foreign social network providers with over one million daily users in Türkiye to store user data within the economy



• Indicator 6.3: Infrastructure requirements

- This indicator captures requirements for:
 - local servers
 - local data centres
 - local data infrastructure as a condition for supplying the service.
- E.g., Viet Nam requires providers of websites, social networks, mobile networks and online games to maintain at least one local server.



• Indicator 6.4: Conditional flow regimes

- This indicator captures situations where transfer is allowed **only if conditions are met**, such as:
 - consent
 - adequacy
 - contractual safeguards
 - approval
 - evaluation requirements
- If transfer remains legally possible after conditions are met, it should generally **not** be treated as a total ban.
- Palau requires agencies to notify the Ministry of State and obtain individual consent before transferring personal information abroad



•Quiz 6:

- Which indicator does this provision most directly correspond to?
- -- **Armenia — Law on Protection of Personal Data 2015, Articles 27**
- “1. Personal data may be transferred to other country by the data subject's consent or where the transfer of data stems from the purposes of processing personal data and/or is necessary for the implementation of these purposes.
- 2. Personal data may be transferred to other state without the permission of the authorised body, where the given State ensures an adequate level of protection of personal data. An adequate level of protection of personal data shall be considered to be ensured, where:
 - (1) personal data are transferred in compliance with international agreements;
 - (2) personal data are transferred to any of the country included in the list officially published by the authorised body.....”
- A. 6.1 — Ban and local processing requirements
- B. 6.2 — Local storage requirements
- C. 6.4 — Conditional flow regimes
- D. 6.3 — Local infrastructure requirements

•Answer

- Which indicator does this provision most directly correspond to?
- -- **Armenia — Law on Protection of Personal Data 2015, Articles 27**
- “1. Personal data **may** be transferred to other country by the **data subject's consent** or where the transfer of data stems from the purposes of processing personal data and/or is necessary for the implementation of these purposes.
- 2. Personal data **may** be transferred to other state without the permission of the authorised body, where the given State ensures **an adequate level of protection of personal data**. An adequate level of protection of personal data shall be considered to be ensured, where:
 - (1) personal data are transferred in compliance with international agreements;
 - (2) personal data are transferred to any of the country included in the list officially published by the authorised body.....”
- A. 6.1 — Ban and local processing requirements
- B. 6.2 — Local storage requirements
- **C. 6.4 — Conditional flow regimes**
- D. 6.3 — Local infrastructure requirements

•Quiz 7

- Bhutan -- Code of Practice for Information Security, Cybersecurity and Privacy Protection for ICT/Telecommunication Service Providers 2024
- ‘ Section 9.8 The licensee must establish and implement network access control policies and restrict interconnections with outside networks unless necessary.
- Section 9.9 The licensee must segregate network architecture based on different security and risk levels and limit communications between segments.
- Section 9.10 The licensee must restrict access to systems and applications in accordance with the organization's access control policy and implement security controls at each tier of a multi-tier architecture. ’
- Are those provisions local infrastructure requirements? And why?

•Answer

- Bhutan -- Code of Practice for Information Security, Cybersecurity and Privacy Protection for ICT/Telecommunication Service Providers 2024
- ‘ Section 9.8 The licensee **must establish** and implement **network access control policies** and restrict interconnections with outside networks unless necessary.
- Section 9.9 The licensee **must segregate network architecture** based on different security and risk levels and limit communications between segments.
- Section 9.10 The licensee **must restrict access** to systems and applications in accordance with the organization's access control policy and implement security controls at each tier of a multi-tier architecture. ’
- Are those provisions local infrastructure requirements or local storage requirements? And why?
- No, they are not. It requires the provider (licensee) to have a strict, formalized rulebook (policy) governing who and what can connect to their network. and the principle of **network segmentation**. Instead of having one massive, open internal network where any compromised device can talk to everything else, the network must be chopped up into isolated zones.
- Key lessons: Do not rely solely on a literal piecemeal analysis of statutory keywords; instead, consider both the semantic context and the underlying legal functions.

•Quiz 8:

- Which indicator does this provision most directly correspond to? Why?
- Kazakhstan — Law No. 94-V on Personal Data and Protection (2013), Article 12(2)
- Article 12. Accumulation and storage of personal data
-
- 2. Personal data shall be stored by the owner and/or operator, as well as by a third party in a database located in the territory of the Republic of Kazakhstan.

•Answer

- Which indicator does this provision most directly correspond to? Why?
- Kazakhstan — Law No. 94-V on Personal Data and Protection (2013), Article 12(2)
- Article 12. Accumulation and storage of personal data
-
- 2. Personal data shall be **stored** by the owner and/or operator, as well as by a third party in a database located in the territory of the Republic of Kazakhstan.
- Indicator 6.2 Because the provision requires personal data to be stored in a domestic database, this is a typical local storage obligation.

•Quiz 9:

- Which indicator does this provision most directly correspond to? Why?
- **Article 5** Any applicant applying to engage in online ride-hailing operations shall possess online and offline service capabilities, and meet the following conditions:
 - **(1)** Hold the qualifications of an enterprise legal person;
 - **(2)** Possess an internet platform capable of conducting online ride-hailing operations, alongside information data interaction and processing capabilities commensurate with the proposed business; possess the conditions necessary to allow relevant regulatory authorities—including transportation, communications, public security, taxation, and cyberspace administration—to retrieve and query relevant network data and information in accordance with the law; ensure that the database of the network service platform is connected to the regulatory platform of the competent administrative department for taxi services; **locate its servers within the territory of Mainland China**; and maintain network security management systems and technical security protection measures that comply with relevant regulations
- (Not official translation)

•Answer

- Which indicator does this provision most directly correspond to? Why?
- **Article 5** Any applicant applying to engage in online ride-hailing operations shall possess online and offline service capabilities, and meet the following conditions:
 - **(1)** Hold the qualifications of an enterprise legal person;
 - **(2)** Possess an internet platform capable of conducting online ride-hailing operations, alongside information data interaction and processing capabilities commensurate with the proposed business; possess the conditions necessary to allow relevant regulatory authorities—including transportation, communications, public security, taxation, and cyberspace administration—to retrieve and query relevant network data and information in accordance with the law; ensure that the database of the network service platform is connected to the regulatory platform of the competent administrative department for taxi services; **locate its servers within the territory of Mainland China**; and maintain network security management systems and technical security protection measures that comply with relevant regulations
- (Not official translation)
- **Indicator 6.3. Because this not only requires data to be kept locally, but also requires service providers to have domestic servers, this is a more significant local physical infrastructure obligation.**

• Pillar 7: Concept, objective, and scope

- **Pillar 7 - domestic governance of personal data**
- *How is data governed **within the economy**, and what domestic obligations apply?*
 - P7-I1 (Indicator 7.1) Lack of a comprehensive legal framework for data protection; (For 7.1, we cover sectoral laws providing data privacy protection on specific data e.g., telecom data, health data.)
 - P7-I2 (Indicator 7.2) Lack of a dedicated legal framework for cybersecurity;
 - P7-I3 (Indicator 7.3) Minimum period of data retention requirements;
 - P7-I4 (Indicator 7.4) Data Protection Impact Assessment (DPIA) or Data Protection Officer (DPO) requirements;
 - P7-I5 (Indicator 7.5) Requirements to allow Government access to personal data.



- **Indicator 7.1: Comprehensive data protection framework**
- This indicator asks whether the economy has a **horizontal / comprehensive** legal framework for personal data protection.
- A **horizontal** framework is one that governs personal data generally, instead of addressing only one sector or one type of data.
- RDTII also recognizes **sectoral laws** — for example in finance, health, or telecommunications — and these should still be recorded if they exist.
- Horizontal/Sectoral may affect scores:
 - **lack of a comprehensive framework = higher score,**
 - **sectoral or partial framework = intermediate,**
 - **full horizontal framework = lower score**



• Indicator 7.2: Dedicated cybersecurity framework

- This indicator asks whether the economy has a **dedicated legal framework for cybersecurity**.
- A dedicated cybersecurity framework is more than scattered data-security clauses in other laws; it is a legal framework specifically designed to regulate cybersecurity-related obligations.
- The scoring direction is similar to 7.1:
 - **absence of a dedicated framework = higher score,**
 - **sectoral or partial coverage = intermediate,**
 - **presence of a dedicated framework = lower score.**



- **Indicator 7.3: Minimum period of data retention requirements**
- This indicator captures rules requiring data to be retained for **at least a specified minimum period**.
- It is **not** the same as a rule saying data should not be kept longer than necessary.
- E.g., In Bangladesh, data related to business transactions on e-commerce must be retained for 6 years from the transaction date.
- Note:
 - keep at least 5 years  7.3
 - do not keep longer than necessary  not positive 7.3



• Indicator 7.4: DPO and DPIA requirements

- This indicator captures obligations to:
 - appoint a **Data Protection Officer**
 - conduct a **Data Protection Impact Assessment**
- E.g., Singapore requires companies to appoint one or more data protection officers to ensure the organization's compliance with the Personal Data Protection Act.



• Indicator 7.5: Government access to personal data

- This indicator asks whether the legal framework enables or requires **Government access to personal data**.
- Researchers may need to look beyond privacy law, including:
 - criminal procedure
 - surveillance
 - lawful access
 - national security
 - telecom law



•Quiz 10

- Which indicator you think this Section related to?
- **39.**—(1) Subject to subsection (1A), a police officer or an authorised person investigating an arrestable offence may, at any time —
 - (a) access, inspect and check the operation in or from Singapore of a computer (whether in Singapore or elsewhere) that the police officer or authorised person has reasonable cause to suspect is or has been used in connection with, or contains or contained evidence relating to, the arrestable offence;
 - (b) use any such computer in or from Singapore, or cause any such computer to be used in or from Singapore —
 - (i) to search any data contained in or available to such computer; and
 - (ii) to make a copy of any such data;
-
- Singapore Criminal Procedure Code 2010

•Answer

- Which indicator you think this Section related to?
- **39.**—(1) Subject to subsection (1A), a **police officer** or **an authorised person** investigating an arrestable offence may, at any time —
 - (a) **access, inspect and check** the operation in or from Singapore of a computer (whether in Singapore or elsewhere) that the police officer or authorised person has reasonable cause to suspect is or has been used in connection with, or contains or contained evidence relating to, the arrestable offence;
 - (b) use any such computer in or from Singapore, or cause any such computer to be used in or from Singapore —
 - (i) **to search any data contained** in or available to such computer; and
 - (ii) to make a copy of any such data;
-
- Singapore Criminal Procedure Code 2010
- **Indicator 7.5 The provision gives police or authorized investigators legal power to access, search, and copy data for law-enforcement purposes.**

•Quiz 11

- Which indicator you think those provisions related to?
- Bhutan -- Code of Practice for Information Security, Cybersecurity and Privacy Protection for ICT/Telecommunication Service Providers 2024
- ‘Section 9.12 For remote access, the licensee must ensure that connections have strong encryption and are made only through secured intermediary mechanisms.
- Section 9.16 The licensee must develop a policy on cryptographic controls for the protection of information and manage the lifecycle of cryptographic keys.
- Section 9.8 The licensee must restrict data flow to only one-way if only one-way data flow is required for operations and ensure that connection to the internet is controlled to mitigate cybersecurity risks.’

•Answer

- Which indicator you think those provisions related to?
- Bhutan -- Code of Practice for Information Security, Cybersecurity and Privacy Protection for ICT/Telecommunication Service Providers 2024
- ‘Section 9.12 For remote access, the licensee must ensure that connections have strong encryption and are made only through secured intermediary mechanisms.
- Section 9.16 The licensee must develop a policy on cryptographic controls for the protection of information and manage the lifecycle of cryptographic keys.
- Section 9.8 The licensee must restrict data flow to only one-way if only one-way data flow is required for operations and ensure that connection to the internet is controlled to mitigate cybersecurity risks.’
- Indicator 7.2 these provisions regulate encryption, cryptographic controls, remote access security, and network-security architecture. They are cybersecurity obligations

•Quiz 12:

- Which indicator you think those provisions related to?
- India — Digital Personal Data Protection Act 2023, Section 10
- **10.(1)**
- (2) The Significant Data Fiduciary shall
 - (a) appoint a **Data Protection Officer** who shall
 - (i) represent the Significant Data Fiduciary under the provisions of this Act;
 - (ii) be based in India;
 - (iii) be an individual responsible to the Board of Directors or similar governing body of the Significant Data Fiduciary; and
 - (iv) be the point of contact for the grievance redressal mechanism under the provisions of this Act;
 - (b) appoint an independent data auditor to carry out data audit, who shall evaluate the compliance of the Significant Data Fiduciary in accordance with the provisions of this Act; and
 - (c) undertake the following other measures, namely:
 - (i) periodic **Data Protection Impact Assessment**, which shall be a process comprising a description of the rights of Data Principals and the purpose of processing of their personal data, assessment and management of the risk to the rights of the Data Principals, and such other matters regarding such process as may be prescribed;
 - (ii) periodic audit; and
 - (iii) such other measures, consistent with the provisions of this Act, as may be prescribed.

• Answer

- Which indicator you think those provisions related to?
- India — Digital Personal Data Protection Act 2023, Section 10
- **10.(1)**
- (2) The Significant Data Fiduciary shall
 - (a) appoint a **Data Protection Officer** who shall
 - (i) represent the Significant Data Fiduciary under the provisions of this Act;
 - (ii) be based in India;
 - (iii) be an individual responsible to the Board of Directors or similar governing body of the Significant Data Fiduciary; and
 - (iv) be the point of contact for the grievance redressal mechanism under the provisions of this Act;
 - (b) appoint an independent data auditor to carry out data audit, who shall evaluate the compliance of the Significant Data Fiduciary in accordance with the provisions of this Act; and
 - (c) undertake the following other measures, namely:
 - (i) periodic **Data Protection Impact Assessment**, which shall be a process comprising a description of the rights of Data Principals and the purpose of processing of their personal data, assessment and management of the risk to the rights of the Data Principals, and such other matters regarding such process as may be prescribed;
 - (ii) periodic audit; and
 - (iii) such other measures, consistent with the provisions of this Act, as may be prescribed.
- Indicator 7.4 the provision requires a Significant Data Fiduciary to appoint a **Data Protection Officer**, conduct **Data Protection Impact Assessments**, and undertake related accountability measures such as audits.

- Quality-control checklist before database entry
- Have I identified the correct indicator and its scope under the Guide?
- Is my source official, current, and in force?
- Did I capture the exact provision, not only the title?
- Did I separate the main rule from its exceptions, approvals, or thresholds?
- If there is no captured restriction, did I still cite the general governing law as the reference basis?

•Hands on practice

- Indicator 6.1 Singapore:ban and/or local processing requirement
- Indicator 7.3 Malaysia:minimum period of data retention requirements
- Indicator 5.3 India:shares owned by the Government in telecom companies
- For each case: define the indicator → identify likely source families → locate the official source → extract the operative clause → map it to the database fields
- Your turn!

Requirements: **Manually** collect data for at least Indicator 6.1 and 7.3, indicator 5.3 is optional.
Deadline: 9th June (Tuesday)



•Indicator 6.1 Singapore

Manual, not
using AI

	A	B	D	E	F	G	H	I	J	K	L
	Pillar_I D	Indicat or_ID	Raw Score	Act and/or practice	Coverage	Impact or comments on Acts or practices	Timeframe	References			
1											
40	6	Cross-border Data Policies									
	6	6.1									
41	6	6.2									

- **Step 1 — Define the indicator correctly:** 6.1 captures a ban on data transfer and/or a local processing requirement, not every cross-border transfer condition.
- **Step 2 — Start with the official general law, also look for sectoral laws:** should look for evidence in the horizontal law and sectoral law, look for official enforced laws, secondary source will only lead the researchers to the official sources.
- **Step 3 — Extract the legal text and add interpretation:** extract original legal text and analyse if why it's relevant.
- **Step 4 — Database implication:** add the information to the database entries
- **Key lesson:** do not mis-code a transfer-limitation obligation as a ban.

Column [Act and/or practice]:

Column [Coverage]:

Column [Impact or comments on Acts or practices]:

Column [Timeframe]:

Column [Reference]:

•Indicator 7.3 Malaysia

	A	B	D	E	F	G	H	I	J	K	L
	Pillar I D	Indicat or ID	Raw Score	Act and/or practice	Coverage	Impact or comments on Acts or practices	Timeframe	References			
1											
46	7	Domestic Data Privacy & Protection									
7	7.3										
50	7										

Manual, not
using AI

- **Step 1 — Define the indicator correctly:** 7.3 captures data retention requirements.
- **Step 2 — Start with the official general law, also look for sectoral laws:** should look for evidence in the horizontal law and sectoral law, look for official enforced laws, secondary source will only lead the researchers to the official sources.
- **Step 3 — Extract the legal text and add interpretation:** extract original legal text and analyse if why it's relevant.
- **Step 4 — Database implication:** add the information to the database entries

Column [Act and/or practice]:

Column [Coverage]:

Column [Impact or comments on Acts or practices]:

Column [Timeframe]:

Column [Reference]:

Manual, not using AI

Indicator 5.3 India

	A	B	D	E	F	G	H	I	J	K
	Pillar_I D	Indicat or_ID	Raw Score	Act and/or practice	Coverage	Impact or comments on Acts or practices	Timeframe			References
1										
5	5.3									
35	5	5.4								

- **Step 1 — Define the indicator:** 5.3 asks whether the Government owns shares in telecom companies; under the Guide, a score of 1 applies where Government ownership in at least one company is above 50%.
- **Step 2 — Identify the evidence:** both primary source and secondary source.
- **Step 3 — Extract information and explain:** not only legal text in the primary source, also information from secondary source.
- **Step 4 — Database implication:** add the information to the database entries

Column [Act and/or practice]:

Column [Coverage]:

Column [Impact or comments on Acts or practices]:

Column [Timeframe]:

Column [Reference]:

THANK YOU!



[More on RDTII](#)



[RDTII Guide 2.1](#)

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